

26PR00522 Matter of Maria L Cook Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-07

Motion: Verified Petition for Instructions and for Order Directing Distribution of Trust Assets and for Order Suspending and Removing Trustee

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Matter of Maria L Cook Trust

26PR00522

Verified Petition for Instructions and for Order Directing Distribution of Trust Assets and for Order Suspending and Removing Trustee

Tentative Ruling: The petition is GRANTED in part and CONTINUED in part, as set forth below.

Alan Duane Cook is removed as trustee and Michael Cook is appointed the sole trustee, to serve without bond. Michael Cook is directed to proceed with distributions provided under section 7.02 of the Trust, and any other applicable trust terms, as soon as reasonably practicable.

Alan Duane Cook's "objection" filed July 27, 2026 fails to deny or dispute any material facts and is not responsive to the petition in any material way, and thus is not legally sufficient pursuant to California Code of Civil Procedure §431.30(b). The Court therefore finds it does not function to contest the petition.

As to the damages/surcharge requested in the petition, evidence will need to be presented to this Court before a decision can be rendered. Therefore, this matter is CONTINUED to November 20, 2026, at 9:30 a.m. in Department 63. The purpose of the continuance is to allow the petitioner time to prepare to present written evidence to the Court and respondent regarding the amount of any damages/surcharge claimed. Unless the petitioner needs and requests more time, the petitioner should file and serve written evidence supporting the damages sought at least 10 days before the hearing. In the absence of any objection, the Court may decide the question based solely on the written evidence submitted. However, if there is an objection, or if the Court determines it requires live testimony, it may set an evidentiary hearing.

The Court finds this structure is necessary as the respondent may yet contest the amounts sought despite his failure to validly object to the underlying petition. As an analogy, the Court points to the structure in civil cases for damages following a default. There, the amount of damages that may be awarded are limited by the allegations of the complaint, even where a statement of damages is served prior to entry of default. As discussed in the case of *Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267:

We begin with the basic guidelines for analyzing the legal effect of a default. "Substantively, '[t]he judgment by default is said to "confess" the material facts alleged by the plaintiff, i.e., the defendant's failure to answer has the same effect as an express admission of the matters well pleaded in the complaint.'" (*Steven M. Garber & Associates v. Eskandarian* (2007) 150 Cal.App.4th 813, 823, 59 Cal.Rptr.3d 1, second italics added.) The "well-pleaded allegations" of a complaint refer to " 'all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.' " (Evans v. City of Berkeley (2006) 38 Cal.4th 1, 6, 40 Cal.Rptr.3d 205, 129 P.3d 394, quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591, 96 Cal.Rptr.

601, 487 P.2d 1241.) Because the default confesses those properly pleaded facts, a plaintiff has no responsibility to provide the court with sufficient evidence to prove them—they are treated as true for purposes of obtaining a default judgment. (Ostling v. Loring (1994) 27 Cal.App.4th 1731, 1746, 33 Cal.Rptr.2d 391.) But that is all the default does. There is no penalty for defaulting. “A defendant has the right to elect not to answer the complaint. (Greenup v. Rodman (1986) 42 Cal.3d 822, 829 [231 Cal.Rptr. 220, 726 P.2d 1295].) Although this may have been a tactical move by defendant, it is a permissible tactic.” (Stein v. York (2010) 181 Cal.App.4th 320, 325, 105 Cal.Rptr.3d 1.) And if the well-pleaded allegations of the complaint do not state any proper cause of action, the default judgment in the plaintiff’s favor cannot stand. On appeal from the default judgment, “[a]n objection that the complaint failed to state facts sufficient to constitute a cause of action may be considered.” see (Martin v. Lawrence (1909) 156 Cal. 191, 103 P. 913; Bristol Convalescent Hosp. v. Stone (1968) 258 Cal.App.2d 848, 859, 66 Cal.Rptr. 404.)

Id. at 281–282 (*italics in original*). Damages following a default are generally limited to those demanded in the complaint:

[Plaintiff’s] complaint also fails to set forth any clear demand for damages, let alone one which would support the enormous judgment he obtained from the trial court. As this court has iterated and then reiterated, Code of Civil Procedure section 580 prohibits the entry of a default judgment in an amount in excess of that demanded in the complaint. [Citations omitted.] Moreover, we have also made it clear that a statement of damages cannot be relied upon to establish a plaintiff’s monetary damages, except in cases of personal injury or wrongful death. “Statements of damages are used only in personal injury and wrongful death....[Citation.] In all other cases, when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint. [Citations.]” (Sole Energy Co. v. Hodges, *supra*, 128 Cal.App.4th at p. 206, fn. 4, 26 Cal.Rptr.3d 823....)

Id. at 286.

While this is not a civil action, the concern, based in due process, exists equally. That is the amount of damages to be claimed in the future are not apparent from the allegations of the petition. Rather, the basis for the amount of damages will necessarily be developed following the production of the accounting and/or investigation by petitioner. The petition therefore fails to provide notice to the respondent that a judgment against her for a specific amount would result from her failure to object to the petition. Of course, at any future hearing, the respondent may not contest any of the allegations of the petition, but he is entitled to be given an opportunity to present evidence and argument responsive to any claim for a specified amount of damages then raised.

The request for costs of suit associated with the petition and any hearing may be claimed pursuant to a memorandum of costs filed with the court and subject to a motion to strike or tax at the conclusion of the matter.

Any request for attorney’s fees must be by noticed motion and include the authority for an award, as well as support for the amount requested.

Counsel for the petitioner is directed to submit a revised proposed order after hearing that conforms to this ruling. The Court will issue a written order.